

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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GERMAN VALAREZO, JR., and M.V., an infant, by his
father and natural guardian GERMAN VALAREZO, JR.,

Plaintiffs,

-against-

THE CITY OF NEW YORK, a municipal entity; New York
City Police Department ("NYPD") Inspector BRIAN
MULLEN, in his individual capacity; NYPD Police Officer
JUAN VALDEZ, in his individual capacity; NYPD Sergeant
DE LA CRUZ (whose first name is presently unknown), in her
individual capacity; NYPD Sergeant HARRINGTON (whose
first name is presently unknown), in his individual capacity;
and NYPD Police Officers JOHN DOEs (whose identities are
presently unknown), in their individual capacities,

Defendants.

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Index No.:

Plaintiffs GERMAN VALAREZO, JR., and M.V., an infant, by his father and natural
guardian GERMAN VALAREZO, JR., by and through their attorneys, Bernstein Clarke &
Moskovitz PLLC, allege as follows:

PRELIMINARY STATEMENT

1. While he was the Commanding Officer of the 44th Precinct, NYPD Inspector
Brian Mullen ordered the false arrest of German Valarezo, Jr., a retired New York City
Corrections Officer. Inspector Mullen also fabricated allegations against Mr. Valarezo that led
to unsubstantiated criminal charges being filed against him. Those charges were eventually
dropped by the District Attorney's Office, and the Civilian Complaint Review Board later
concluded that Inspector Mullen abused his authority by ordering Mr. Valarezo's arrest. Despite
this, it is believed that Inspector Mullen maintains an executive level position within the NYPD.

2. Inspector Mullen is also responsible for ordering the illegal detention of M.V., Mr. Valarezo's then 15-year-old son. M.V. was falsely arrested in the same incident as his father, and he was illegally held for hours, handcuffed to a wall in an interrogation room at the 44th Precinct. On Inspector Mullen's order, officers at the 44th Precinct refused to allow M.V.'s mother, a uniformed New York City Police Department officer, to see her son. Instead, they made her wait for hours across the street from the precinct. In clear violation of the law, the defendant officers interrogated 15-year-old M.V. without his parents present, and left him sweating in a hot interrogation room without food or access to medicine he takes for epilepsy. M.V.'s mother told precinct officers that he was epileptic and needed medication. M.V. did not receive his medication and suffered a seizure at the precinct. Late at night, after he had at least one seizure, M.V. was finally released to his mother.

3. This case is brought to vindicate Mr. Valarezo's and M.V.'s civil and constitutional rights, obtain damages for their injuries, expunge any record of their arrests, and ensure that Inspector Mullen is held accountable for his misconduct.

JURISDICTION

4. This action is brought pursuant to 42 U.S.C. § 1983 for violations of plaintiffs' civil rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

5. This action also involves violations of plaintiffs' rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution and New York State common law.

6. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

7. Venue is proper in Bronx County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Bronx County is where the events giving rise to this action took place.

JURY DEMAND

8. Plaintiffs demand a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

9. Plaintiff GERMAN VALAREZO, JR., is a citizen of the United States and of the State of New York. At all times relevant to this complaint, he resided in Bronx County, in the City of New York.

10. Plaintiff M.V. is a citizen of the United States and of the State of New York. At all times relevant to this complaint, he resided in Bronx County, in the City of New York.

11. M.V. is an infant and appears in this case by and through his father and natural guardian GERMAN VALAREZO, JR.

12. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

13. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (hereinafter referred to as “NYPD”). The NYPD acts as the City’s agent and the City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

14. Upon information and belief, at all relevant times, defendants NYPD Inspector BRIAN MULLEN, Police Officer JUAN VALDEZ, Sergeant DE LA CRUZ (whose first name

is presently unknown), Sergeant HARRINGTON (whose first name is presently unknown), and NYPD Police Officers JOHN DOES (collectively “the individual defendants”) were and are citizens of the United States and the State of New York

15. At all relevant times, the individual defendants were employed by the City and acted under color of law in the course and scope of their duties and authority as officers, agents, servants, and employees of the NYPD and the City.

16. At all relevant times, the individual defendants violated plaintiffs’ clearly established rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and Article 1 §§ 1, 6, and 12 of the New York State Constitution, of which reasonable law enforcement officers in their respective circumstances would have known were violations of plaintiffs’ rights.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

17. Plaintiffs served Notices of Claim upon the City by electronic means, as prescribed by the Office of the New York City Comptroller, on August 26, 2016, within ninety days of the events giving rise to plaintiffs’ claims.

18. Plaintiffs received electronic confirmation that their Notices of Claim were received by the New York City Comptroller’s Office.

19. On or about December 20, 2016, Mr. Valarezo served a Supplemental Notice of Claim on the New York City Comptroller’s Office, which indicated that the criminal charges against him had been dismissed on or about September 22, 2016.

20. Defendant City conducted an examination of plaintiffs pursuant to New York General Municipal Law § 50-h on April 3, 2017.

21. More than thirty days have elapsed since the Notices of Claim and the Supplemental Notice of Claim were served on the New York City Comptroller's Office, and the City of New York has neglected and/or refused to adjust or pay said claims.

22. This action is filed within one year and ninety days of the events giving rise to plaintiffs' claims.

STATEMENT OF FACTS

23. On May 28, 2016, German Valarezo's wife, Monica Del Valle,¹ called to tell him that her mother had been rushed to Bronx Lebanon Hospital that morning, and her condition was serious.

24. Mr. Valarezo went with his children to the hospital to meet Monica.

25. Several family members were already in the room with Monica's mother, and the emergency waiting room was crowded, so Mr. Valarezo went outside to wait with his daughter who has cerebral palsy and is in a wheelchair.

26. Mr. Valarezo's son, M.V., who was then 15-years-old, stayed in the hospital waiting room with his older brother, Steven.

27. While M.V. and Steven were in the hospital waiting room, two men accosted them and one of the men told M.V. to give him his phone.

28. Hospital security intervened, along with a New York City Police Department ("NYPD") police officer, defendant JUAN VALDEZ.

29. Mr. Valarezo learned there was an incident inside the hospital and went back into the hospital.

¹ Mr. Valarezo and Monica are not legally married, but they have been in a committed relationship for over 25 years, have several children together, and refer to each other as husband and wife.

30. He identified himself as a retired New York City Corrections Officer to the hospital security and Officer Valdez.

31. Officer Valdez asked Mr. Valarezo to take his family outside, and Mr. Valarezo complied.

32. Outside the hospital, there were a dozen or more NYPD officers.

33. NYPD officers spoke to M.V., and he identified the man who tried to rob him.

34. One of the men who accosted M.V. began making threatening gestures toward him and Mr. Valarezo.

35. Mr. Valarezo complained to the police officers about the man's actions.

36. Someone behind Mr. Valarezo put an arm across his chest. Upon information and belief, that person was defendant Brian Mullen.

37. Not knowing who the person was, Mr. Valarezo brushed the arm away.

38. Several officers whose identities are presently unknown and are sued herein as "John Doe" defendants, violently threw Mr. Valarezo to the ground and struck him repeatedly.

39. These officers struck Mr. Valarezo in his face, his torso, and his head.

40. One officer put his knee on Mr. Valarezo's head and ground his face into the concrete.

41. Seeing this, M.V. rushed to his father.

42. Officers grabbed M.V. and threw him to the ground.

43. Officers whose identities are presently unknown and are sued herein as "John Doe" defendants, kicked, punched, struck, and choked M.V., and slammed his head into the ground.

44. After handcuffing M.V., one or more of the “John Doe” officers pulled him up from behind, overextending his arms and causing unnecessary and intense pain.

45. One or more “John Doe” officers illegally searched M.V..

46. In open view, a “John Doe” officer pulled M.V.’s pants down.

47. Other “John Doe” officers yelled and cursed at M.V..

48. One or more “John Doe” officer slammed M.V.’s head into a police car.

49. M.V.’s aunt told the officers to stop slamming M.V.’s head because he suffers from seizures.

50. Defendant Mullen ordered Officer Valdez and others to arrest Mr. Valarezo.

51. Defendant Mullen did not have probable cause that Mr. Valarezo had committed any offense to justify his arrest.

52. M.V. was also arrested, even though there was no probable cause that he had committed any offense.

53. Mr. Valarezo was placed in handcuffs while he was on the ground.

54. One or more “John Doe” officers yanked Mr. Valarezo up from behind while he was cuffed, injuring his shoulder.

55. M.V. was handcuffed and placed into a police vehicle.

56. At or around 4:30 or 5:00 p.m., Mr. Valarezo and M.V. were taken separately to the 44th Precinct.

57. Mr. Valarezo had told defendant Valdez and other officers that he was a former New York City Corrections Officer, but they still placed him in a holding pen with other arrestees.

58. Placing Mr. Valarezo into a holding cell with other arrestees was exceedingly dangerous and deliberately indifferent to Mr. Valarezo's safety because he could have been identified by another arrestee as a former Corrections Officer and assaulted.

59. When M.V. was brought into the 44th Precinct, he was placed on a bench next to the man who tried to rob him.

60. He was later taken to a room where he was handcuffed to the wall.

61. Two "John Doe" officers came into the room and questioned M.V..

62. Neither of M.V.'s parents, nor any other family member, was present when the officers questioned M.V..

63. Neither of M.V.'s parents, nor any other family member, had been advised or consented to M.V. being questioned by the officers.

64. The officers knew, or reasonably should have known, that M.V. was 15 years old at the time.

65. Monica left the hospital, where her mother was in critical condition, to go to the 44th Precinct to check on her husband and son.

66. At the 44th Precinct, Monica talked to defendant Sgt. Harrington, whose first name is presently unknown, and told him that she was M.V.'s mother and wanted to see him.

67. Monica identified herself as a member of service.

68. Defendant Harrington told her to wait.

69. After waiting for some time, Monica asked the officer at the front desk what was happening. This officer's identity is presently unknown and is sued herein as a "John Doe" defendant.

70. Monica told this "John Doe" officer that M.V. suffered from epilepsy.

71. After speaking with defendant Sgt. De La Cruz, whose first name is presently unknown, and other supervising officers, this “John Doe” officer told Monica to leave the precinct.

72. Monica went outside and waited on the sidewalk in front of the precinct.

73. After some time, the “John Doe” officer who told Monica to leave the precinct came outside with another officer and they told Monica that she could not wait on the sidewalk outside the precinct.

74. Monica walked across the street and waited.

75. Monica contacted her union representative and told him what had happened. He sent her a text message that her husband was being processed and her son was being held “as per the CO,” meaning, upon the order of defendant Mullen.

76. Monica went back into the precinct with Mr. Valarezo’s former Captain, Regina Bailey, to find out what was happening to her husband and son.

77. Monica and Captain Bailey were told to leave the precinct, and they went back outside and waited.

78. After several hours, Monica went back into the precinct and asked the same “John Doe” officer who had initially told her to leave the precinct what was happening. She told the officer that M.V. needed his epilepsy medication and again demanded to see him.

79. Around 10:00 p.m., Monica was finally taken to see M.V..

80. Monica found M.V. still handcuffed to the wall, his shirt was ripped, and he was soaking wet with sweat.

81. Monica asked defendant Valdez why M.V. was being held, and he told her in sum and substance that it was because of the CO, meaning defendant Mullen.

82. While M.V. was detained, he did not have access to his epilepsy medication, which he takes once in the morning and once at night.

83. The “John Doe” officer who told Monica to leave the precinct and, upon information and belief, defendants De La Cruz and possibly other officers, knew that M.V. was epileptic and needed medication.

84. M.V. suffered at least one seizure inside of the precinct because he did not have medication to control his epilepsy.

85. Monica told defendant Valdez that M.V. had a seizure and defendant Valdez said he would call an ambulance.

86. When an ambulance did not arrive, Monica called 911 from her cell phone.

87. The 911 operator told Monica that an officer from the precinct had to request medical assistance for M.V. because he was in police custody.

88. Monica told defendant Valdez, again, that M.V. needed medical attention.

89. Shortly after that, around 11:00 p.m., M.V. was released and allowed to leave the precinct with his mother.

90. M.V. was never provided medical care at the 44th Precinct.

91. Mr. Valarezo was taken from the 44th Precinct to Central Booking.

92. On or about May 29, 2016, Mr. Valarezo was charged with Disorderly Conduct and Resisting Arrest in Bronx Criminal Court under Docket Number 2016BX023487.

93. The Criminal Court complaint was signed by defendant Valdez, and was based on false allegations made by defendant Mullen.

94. The false allegations made by defendant Mullen, as recited in the criminal complaint, included that Mr. Valarezo refused to comply with an order to leave, pushed

defendant Mullen in order to walk into the hospital, and flailed his arms and pushed defendant Mullen in an attempt to avoid being handcuffed.

95. Mr. Valarezo had to return to court on two other occasions because of the false charges that were lodged against him.

96. On or about September 22, 2016, the charges against Mr. Valarezo were dismissed on motion of the Bronx District Attorney's Office.

97. In or around July 2016, Mr. Valarezo and Monica received a letter from the NYPD dated June 30, 2016, indicating that a juvenile report was made that M.V. committed disorderly conduct on May 28, 2016.

98. The letter stated that there will be a record of M.V.'s arrest until he is 17 years old, and admonished Mr. Valarezo and Monica that they needed to be "reasonably diligent" in their supervision of M.V..

99. Ironically, the letter recommended that M.V. attend the NYPD Police Athletic League or NYPD Youth Summer Program.

100. Mr. Valarezo and M.V. filed complaints with the Civilian Complaint Review Board ("CCRB") about what happened.

101. Following interviews with Mr. Valarezo and M.V., and after reviewing surveillance video from outside of the hospital, the CCRB concluded that defendant Mullen abused his authority by ordering the arrest of Mr. Valarezo, and recommended that the NYPD discipline defendant Mullen. The CCRB could not identify the officers who abused M.V.

102. Mr. Valarezo has received no information that defendant Mullen has in fact been disciplined by the NYPD.

103. Plaintiffs suffered serious physical injuries as a result of the defendants' conduct. These injuries caused plaintiffs substantial pain and suffering.

104. Plaintiffs also suffered the loss of their liberty, invasion of their personal safety and integrity, interference with their familial relationships, harm to the reputation, and the violation of their constitutional rights as a result of the defendants' conduct. These injuries caused plaintiffs to experience, and continue to experience, pain and suffering, distress, humiliation, fear, and embarrassment.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983 – Federal Constitutional Violations

105. Plaintiffs reallege and incorporate by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

106. In committing the acts and omissions complained of herein, the individual defendants acted under color of state law, individually and in concert, to deprive plaintiffs of their constitutionally protected rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable searches;
- b. the right to be free from unreasonable seizures, including through excessive force;
- c. the right to be free from arrest without probable cause;
- d. the right to be free from deprivation of liberty without due process of law;
- e. the right to be free from unreasonable interference with familial relationships;
- f. the right to be free from detention and prosecution without probable cause;
- g. the right to necessary medical care while in police custody;
- h. the right to a fair trial; and

i. the right not to be deprived of liberty based on the fabrication of evidence.

107. In committing the acts and omissions complained of herein, the individual defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

108. As a direct and proximate result of the individual defendants' deprivation of plaintiffs' constitutional rights, plaintiffs suffered the injuries and damages set forth above.

109. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
42 U.S.C. § 1983 – Municipal Liability

110. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

111. Upon information and belief, the NYPD was notified of the CCRB's determination that defendant MULLEN had abused his authority by ordering the arrest of plaintiff GERMAN VALAREZO.

112. Upon information and belief, the NYPD has not punished or disciplined defendant MULLEN.

113. The City has therefore sanctioned and/or ratified the conduct of Defendant MULLEN.

114. As a result of the foregoing, defendant City is liable for the injuries and damages plaintiffs suffered as alleged herein.

THIRD CAUSE OF ACTION
Violations of the New York State Constitution

115. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

116. Defendants subjected plaintiffs to the foregoing acts and omissions without due process of law, thereby depriving plaintiffs of rights, privileges, and immunities guaranteed by Article 1 §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the rights and privileges secured to all citizens of the State of New York, the right to due process, and the right to be free from unreasonable searches and seizures.

117. As a direct and proximate result of defendants' deprivations of plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiffs suffered the injuries and damages set forth above.

118. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

FOURTH CAUSE OF ACTION
Assault and Battery

119. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

120. Defendants, without just cause, wilfully and maliciously used physical force against plaintiffs, causing them injuries.

121. Defendants committed the foregoing acts intentionally, wilfully, and with malicious disregard for plaintiffs' rights, and are therefore liable for punitive damages.

122. As a direct and proximate result of defendants' conduct, plaintiffs suffered the injuries and damages set forth above.

123. Defendant City is vicariously liable for the conduct of the individual defendants as set forth herein.

FIFTH CAUSE OF ACTION
Malicious Prosecution

124. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

125. A criminal proceeding was commenced against Mr. Valarezo in Bronx County Criminal Court.

126. The proceeding was initiated by a false complaint signed by defendant VALDEZ and based on false allegations by defendant MULLEN.

127. The criminal proceeding was terminated in Mr. Valarezo's favor when the charges against him were dismissed.

128. There was no probable cause for any of the charges brought against Mr. Valarezo.

129. The proceeding was brought out of actual malice and in order to cover up for the defendants' misconduct.

130. Defendants MULLEN and VALDEZ committed the foregoing acts intentionally, willfully, and with malicious disregard for Mr. Valarezo's rights and are therefore liable for punitive damages.

131. As a direct and proximate result of defendants MULLEN's and VALDEZ's conduct, Mr. Valarezo suffered the injuries and damages set forth above.

132. The City is vicariously liable for the conduct of defendants MULLEN and VALDEZ as set forth herein.

SIXTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

133. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

134. The individual defendants, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally and/or recklessly caused plaintiffs to suffer severe mental and emotional distress, pain and suffering, and damage to name and reputation.

135. The individual defendants committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiffs' rights and are therefore liable for punitive damages.

136. As a direct and proximate result of defendants' conduct, plaintiffs suffered the injuries and damages set forth above.

137. The City is vicariously liable for the conduct of the individual defendants as set forth herein.

SEVENTH CAUSE OF ACTION
Negligence

138. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

139. The individual defendants owed plaintiffs a duty of care, including the duty to exercise due care in the course of their duties as NYPD police officers and the duty to protect citizens from the intentional misconduct of other police officers.

140. The individual defendants, by the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

141. All of these acts were performed without any negligence on the part of plaintiffs and were the proximate cause of injuries to plaintiffs.

142. As a direct and proximate result of defendants' conduct, plaintiffs suffered the injuries and damages set forth above.

143. The City is vicariously liable for the negligence of the individual defendants as set forth herein.

EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

144. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

145. As police officers acting in the performance of their duties, the individual defendants owed plaintiffs a duty of care.

146. In breach of that duty of care, the individual defendants' foregoing conduct endangered plaintiffs' safety and caused them to fear for their safety.

147. As a direct and proximate result of defendants' conduct, plaintiffs suffered the injuries and damages set forth above, which include emotional distress.

148. The City is vicariously liable for the negligence of the individual defendants as set forth herein.

NINTH CAUSE OF ACTION
Unlawful Interrogation

149. Plaintiffs reallege and incorporate by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

150. M.V. was under 16 years of age when he was arrested.

151. Accordingly, defendants were obligated to follow the provisions of New York Family Court Act § 305.2.

152. Defendants violated Family Court Act § 305.2 by, among other things, failing to properly notify M.V.'s parents that he had been taken into custody, by taking him and holding him at the 44th Precinct without access to his parents, and by questioning him without a parent present and without properly notifying his parents.

153. As a direct and proximate result of defendants' conduct, M.V. suffered the injuries and damages set forth above.

154. The City is vicariously liable for the acts of the individual defendants as set forth herein.

DEMAND FOR RELIEF

WHEREFORE, plaintiffs demand the following relief against the defendants, jointly and severally:

- (a) an order requiring the NYPD to expunge and seal any records related to the arrest of German Valarezo and M.V. as described in this Complaint, and to expunge and seal any juvenile report regarding M.V. related to the events described in this Complaint;
- (b) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (c) punitive damages from the individual defendants to the extent allowable by law;
- (d) attorneys' fees;
- (e) the costs and disbursements of this action;
- (f) interest; and
- (g) such other and further relief as this Court deems just and proper.

Dated: New York, New York
May 28, 2017

BERNSTEIN CLARKE & MOSKOVITZ PLLC
222 Broadway, 19th Floor
New York, New York 10038
(212) 321-0087

A handwritten signature in dark ink, appearing to read 'J. S. Moskowitz', written over a horizontal line.

By: _____

Joshua S. Moskowitz
Lance A. Clarke
Andrew M. J. Bernstein

VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

JOSHUA S. MOSKOVITZ, being duly sworn, deposes and says:

1. I am an attorney for the plaintiffs in the within action.
2. This verification is made by me because the plaintiffs reside in the County of Bronx, which is not the county in which my office is located.
3. I have read the foregoing Verified Complaint and know its contents.
4. The factual allegations are made upon information and belief, and are based on my inquiries, the contents of our files, and discussions I have had with plaintiffs.
5. The Complaint is true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true.

Dated: May 28, 2017



JOSHUA S. MOSKOVITZ